

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	28-07-2026 15:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	28-07-2026 15:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	60 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Petroleum And Natural Gas
विभाग का नाम/Department Name	Na
संगठन का नाम/Organisation Name	Oil And Natural Gas Corporation Limited
कार्यालय का नाम/Office Name	393010
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :patel_pradip@ongc.co.in Buyer Email id: p_sajeshv@ongc.co.in
कुल मात्रा/Total Quantity	2850
वस्तु श्रेणी /Item Category	DODECYL BENZENE SULPHONIC ACID (ONGC)
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	dodecyl benzene sulphonic acid ONGC
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	LABSA (95%) - ONGC, Alkyl Benzene Sulphonic Acid (Acid Slurry) (V2) Conforming to IS 8401, Acetic Acid (ONGC), Oleic Acid (ONGC), Sulphonated Asphalt (ONGC), Stearic Acid (ONGC), Acid Corrosion Inhibitor for (ONGC), Sodium Hexane Sulphonate / Hexane Sulphonic Acid Sodium, Citric Acid Monohydrate (ONGC), 1-Butanesulphonic Acid Sodium Salt 98% (Sodium -1-Butane Sulphonate)
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	- Alkyl Benzene Sulphonic Acid (Acid Slurry) (V2) Conforming to IS 8401 - LABSA (95%) - ONGC
उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष/Years of Past Experience Required for same/similar service	1 Year (s)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No

बिड विवरण/Bid Details	
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Experience Criteria,Past Performance,Certificate (Requested in ATC),OEM Authorization Certificate,Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC),Additional Doc 3 (Requested in ATC),Additional Doc 4 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	3
विगत प्रदर्शन /Past Performance	10 %
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	5 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	Yes
Inspection to be carried out by Buyers own empanelled agency	Yes
Type Of Inspection	Post Dispatch
Name of the Empanelled Inspection Agency/ Authority	CONCERNED ONGC INDENTOR
Auto CRAC Days	60
Payment Timelines	Payments shall be made to the Seller within 10 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation

बिड विवरण/Bid Details	
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	3.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	5

(a). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

लाभार्थी /Beneficiary :

MANAGER F & A
393010, NA, Oil and Natural Gas Corporation Limited, Ministry of Petroleum and Natural Gas
(Ongc Ankleshwar)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता/MII Purchase Preference

एमआईआई खरीद वरीयता/MII Purchase Preference	No
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एमआईआई के लिए सक्षम प्राधिकारी का विवरण:/Details of the Competent Authority for MII

सक्षम प्राधिकारी का नाम/Name of Competent Authority	MoPNG
सक्षम प्राधिकारी का पदनाम/Designation of Competent Authority	MoPNG
सक्षम प्राधिकारी का कार्यालय/विभाग/प्रभाग/Office / Department / Division of Competent Authority	MoPNG
सीए अनुमोदन संख्या/CA Approval Number	MoPNG
सक्षम प्राधिकारी अनुमोदन तिथि/Competent Authority Approval Date	18-11-2024

सक्षम प्राधिकारी द्वारा प्रदान की गई स्वीकृति का संक्षिप्त विवरण/Brief Description of the Approval Granted by Competent Authority

Since the case value is less than Rs 1 Crore, Purchase Preference to MII shall not be applicable in the instant case as per clause no. 3(a) of PMC Circular No. Circular No. 52/2024-cum-BL Amendment No. BL/01/163 and BL/02/134 dated 18.11.2024 read with MoPNG Order No. FP-20013/2/2017- FP-PNG-Part (4) (E-41432) dated 26/04/2022.

Competent Authority Approval for not opting Make In India Preference : [View Document](#)

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	25

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. Experience Criteria: In respect of the filter applied for experience criteria, the Bidder or its OEM of the product offered in the bid {themselves or through reseller(s)} should have regularly, manufactured and supplied same or similar Category Products to any Central / State Govt Organization / PSU for number of Financial years as indicated above in the bid document before the bid opening date. Copies of relevant contracts and delivery acceptance certificates like CRAC to be submitted along with bid in support of having supplied some quantity during each of the Financial year. In case of bunch bids, the category of primary product having highest value should meet this criterion.
2. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within $L-1+ 15\%$ (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.
3. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and

for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

4. Past Performance: The Bidder or its OEM {themselves or through re-seller(s)} should have supplied same or similar Category Products for 10% of bid quantity, in at least one of the last three Financial years before the bid opening date to any Central / State Govt Organization / PSU. Copies of relevant contracts (proving supply of cumulative order quantity in any one financial year) to be submitted along with bid in support of quantity supplied in the relevant Financial year. In case of bunch bids, the category related to primary product having highest bid value should meet this criterion.

5. Inspection of Stores by Nominated Inspection Authority / Agency of buyer or their authorized representatives

An independent third party Professional Inspection Body can help buyer in mitigating buyer's risk with pre-dispatch/post-dispatch inspection in order to ensure that equipment, components, solutions and documentation conform to contractual requirements. The buyer has a right to inspect goods in reasonable manner and within reasonable time at any reasonable place as indicated in contract. Inspection Fee/ Charges (as pre-greed between buyer and Inspection Agency) would be borne by the buyer as per their internal arrangement but may be recovered from the seller if the consignment failed to conform to contractual specification and got rejected by the Inspection Officer. If so requested and accepted by the seller, initially seller may pay for inspection charges as applicable and get the same reimbursed from buyer if consignment accepted by the Inspecting Officer. For reimbursement seller has to submit proof of payment to Inspection Agency.

Seller/OEM shall send a notice in writing / e-mail to the Inspecting officer / inspection agency specifying the place of inspection as per contract and the Inspecting officer shall on receipt of such notice notify to the seller the date and time when the stores would be inspected. The seller shall, at his own expenses, afford to the Inspecting officer, all reasonable facilities as may be necessary for satisfying himself that the stores are being and or have been manufactured in accordance with the technical particulars governing the supply. The decision of the purchaser representative / inspection authority regarding acceptance / rejection of consignment shall be final and binding on the seller.

The Seller shall provide, without any extra charge, all materials, tools, labour and assistance of every kind which the Inspecting officer may demand of him for any test, and examination, other than special or independent test, which he shall require to be made on the seller's premises and the seller shall bear and pay all costs attendant thereon.

The seller shall also provide and deliver store / sample from consignment under inspection free of charge at any such place other than his premises as the Inspecting officer may specify for acceptance tests for which seller/OEM does not have the facilities or for special/ independent tests.

In the event of rejection of stores or any part thereof by the Inspecting officer basis testing outside owing to lack of test facility at sellers premises, the seller shall, on demand, pay to the buyer the costs incurred in the inspection and/or test. Cost of test shall be assessed at the rate charged by the Laboratory to private persons for similar work.

Inspector shall have the right to put all the stores or materials forming part of the same or any part thereof to such tests as he may like fit and proper as per QAP/governing specification. The seller shall not be entitled to object on any ground whatsoever to the method of testing adopted by the Inspecting officer.

Unless otherwise provided for in the contract, the quantity of the stores or materials expended in test will be borne by seller.

Inspecting officer is the Final Authority to Certify Performance / accept the consignment. The Inspecting officer's decision as regards the rejection shall be final and binding on the seller.

The seller shall if so required at his own expense shall mark or permit the Inspecting officer to mark all the approved stores with a recognised Government or purchaser's mark.

DODECYL BENZENE SULPHONIC ACID (ONGC) (2850 kilogram)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer
Specification Document

[Download](#)

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	SANJAY BANSILAL GANGVEKAR	393010,New building, ONGC	2850	45

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

Bidder shall submit the following documents along with their bid for Vendor Code Creation:

- Copy of PAN Card.
- Copy of GSTIN.
- Copy of Cancelled Cheque.
- Copy of EFT Mandate duly certified by Bank.

2. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

A. Technical BEC:

1. Bid should be completed in all aspects covering entire scope of job / supply and should conform to the technical specifications indicated in the bid document duly supported with technical catalogues /literatures, wherever applicable. Incomplete and non-conforming bids will be rejected out- right.

2. The bidder can be either manufacturer of the tendered item or authorized sole selling agent / authorized dealer / authorized distributor / authorized supply house of the manufacturer of the tendered item. The bidder should clearly indicate the category under which the quote is submitted.

3. Manufacturer's experience: In case the bidder is a manufacturer of the tendered item, then, he should satisfy the following along with documentary evidence, which should be enclosed along-with the techno-commercial bid:

(a) Experience Criteria: **Minimum One (01)** year of experience of manufacturing Dodecyl Benzene Sulphonic Acid (DBSA)/ LABSA.

(b) Past Performance criteria: Should have manufactured and supplied **minimum 10%** i.e. 285 Kg of the total quoted quantity of Dodecyl Benzene Sulphonic Acid (DBSA)/ LABSA to companies during the last 5 (five) years.

For meeting the requirement above at (a) & (b), the period reckoned shall be the period prior to the originally scheduled date of opening of the techno-commercial bid.

(c) Documentary evidence in respect of the above (a) and (b) should be submitted/uploaded in the form of

copies of relevant Purchase Orders along with copies of any of the documents in respect of satisfactory execution of each of those Purchase Orders, such as – (i) Satisfactory Inspection report (OR) (ii) Satisfactory supply completion / Installation report (OR) (iii) Consignee Receipted Delivery Challans (OR) (iv) Central Excise Gate Pass / Tax Invoices issued under relevant rules of Central Excise / VAT/GST (OR) (v) Invoice(s) with self-certification by the bidder that supplies against invoices have been executed (OR) (vi) Execution certificate by client with order value (OR) (vii) Any other documentary evidence that can substantiate the satisfactory execution of each of the purchase orders cited above.

(d) Towards proof of manufacturing experience and past supply record, the purchase orders generated through the SAP system (POs having ten-digit PO number) or GeM contracts placed by Corporate MM, Dehradun / Delhi or any work center of ONGC, a list of such purchase order/ GeM contract reference numbers is sufficient. For other supply orders, the documentary evidence in respect of (a) & (b) need to be submitted/uploaded as mentioned at (c) above.

4. In case the bidder is not a manufacturer of the tendered item, then the bidder is required to submit documentary evidence for experience as per (a) and (b) from the concerned manufacturer (having supplied DBSA/LABSA either by manufacturer himself or his distributor) along with the techno-commercial bid and upload the same.

Such bidder must submit authority letter from manufacturer on manufacturer's letter head, who authorized him to market DBSA/LABSA against this tender, which is valid during the time of bidding and should remain valid during the entire execution period of the order.

5. Bidders, who have successfully executed Development order for DBSA/ LABSA placed by ONGC/OIL pursuant to successful field trial testing would be considered as established source of supply and in that case, documents for satisfying BEC Clause (a) & (b) are not required to be submitted.

However, such bidders shall submit the certificate towards satisfactory execution of development order pursuant to successful field trial testing along with the techno-commercial bid.

For Development Order issued by ONGC after 02.12.2020, such certificate should have been issued by Head INDEG only.

6. Applicable for bidders submitting their bid as Start-up: In case Start-up bidder has successfully executed Purchase Order placed by ONGC/OIL/IOCL/HPCL/BPCL/GAIL for supply of DBSA/ LABSA and the material supplied has been used in field satisfactorily, then such Start-up bidders will be considered meeting experience criteria as per BEC Clause (a) and (b). In this regard, bidder shall submit copy of purchase order/contract along with supporting document towards having used the material satisfactorily in the fields.

The above relaxation is subject to submission of documents as mentioned below (Definition of "Start-up" shall be as per Gazette Notification G.S.R. 127(E) dated 19.02.2019 (as amended) of Govt. of India) and willing to avail the relaxations as stipulated in tender document, then they should submit the following documents: (i) Registration Certificate issued by Department for Promotion of Industry and Internal Trade (DPIIT), earlier known as Department of Industrial Policy and Promotion (DIPP), Ministry of Commerce, certified by Start-up Director/ Partner. (ii) A declaration from the Directors/Partner of the Start-up stating that bid is submitted by Start-up as Manufacturer of the quoted item and not as a trader/ dealer/distributor.

7. Bidder should submit the following undertakings (duly filled from (i) to (vi)) on their letterhead:

i) Bidder will supply the material as per ONGC technical specifications and will adhere to it during the entire period of contract.

ii) Bidder agrees to the terms and conditions of the "Destination sampling, bonding and de-bonding" of supplied material as per Special condition of contracts.

iii) Bidder agrees to the terms and conditions of the "Rejection of Bulk Sample" & Product Hazard / Safety clause as per Special condition of contracts.

iv) Bidder confirms to supply the material in "Standard Packing & Marking" as per Special condition of contracts.

v) The Bidder is (i) Manufacturer of the quoted item(s), OR (ii) Authorized sole selling agent / authorized dealer / authorized distributor / authorized supply house of the quoted manufacturer i.e.

..... manufacturer of the tendered item. In case bidder has sought exceptions/deviations from the ONGC technical specifications & testing procedure, Destination sampling, bonding and de-

bonding of supplied material and conditions of the "Rejection of Bulk Sample" and packing & marking clause as per Special condition of contracts, their bids shall be rejected.

vi) I hereby undertake that "in case material is not found conforming to the specification, the supplier shall lift the material within two weeks from the date of intimation at supplier's cost. In case the material is not lifted by the supplier within two weeks, ONGC may decide to return rejected material to supplier on freight to pay basis at risk and cost of the supplier. Further, Supplier will replace the material at its cost within delivery schedule, failing which provision of "Failure and Termination Clause/ Liquidated Damages Clause" of Tender document will be applicable."

B. Special Contract Conditions (SCC):

1. Nominated Inspection Agency: On behalf of the Buyer organization, any one of the following Inspection Agency would be conducting inspection of stores before acceptance:

Pre-dispatch Inspection at Seller Premises (applicable only if pre-dispatch inspection clause has been selected in ATC): NOT REQUIRED.

Post Receipt Inspection at consignee site before acceptance of stores: **AT ONGC, CPF-GANDHAR BY THE TEAM OF INDENTOR, USER SECTION & WAREHOUSE OFFICER**

2. Destination Sampling and testing of chemicals procured from Indigenous sources

Provisions shall be incorporated that each packing will bear mark of the manufacturer as well as name of the Chemical, Lot No. / Batch No., Date of manufacture and supply order number. The supplies will be tested and inspected on receipt before taking the material on charge by ONGC. Samples shall be drawn jointly by a team consisting of representatives from user department, Chemistry section, and warehouse, selected by a randomizer (Representative of minimum E0 level) from ONGC. Supplier shall depute its representative at its own cost for witnessing sampling of chemicals at destination, for which an intimation shall be given by ONGC to the supplier. However, in case supplier do not depute its representative within time specified in intimation, ONGC shall carry out sampling without presence of supplier's representative.

Further, in case material is not found conforming to the specification, the supplier shall lift the material within two weeks from the date of intimation at supplier's cost. In case the material is not lifted by the supplier within two weeks, ONGC may decide to return rejected material to supplier on freight to pay basis at risk and cost of the supplier. Further, Supplier will replace the material at its cost within delivery schedule, failing which provision of "Failure and Termination Clause/ Liquidated Damages Clause" of Tender document will be applicable. Supplier shall provide an undertaking to this effect along with bid.

No Chemist for sampling and bonding in these cases will be deputed at firm's premises.

Sampling of material at destination:

Total Six bulk samples will be drawn during sampling / bonding. The bulk samples taken at destination will have the seal and signatures of the party and ONGC (representatives from user department, Chemistry section, and warehouse, selected by a randomizer (of minimum E0 level)). This activity of sampling shall be videoed on mobile by senior most member of the team and shall be uploaded on ONGC portal directly with only view option. The responsibility covering all important aspects of sampling shall be with the senior most of the team. The sample bottle/container and box, if any, shall be provided with Barcode/ QR code generated on ONGC systems by warehouse officer.

In case supplier do not depute its representative within time specified in intimation by ONGC regarding sampling, ONGC shall carry out sampling without presence of supplier's representative and such bulk samples shall bear seal of ONGC only with signatures of user department, Chemistry section, and warehouse (or his authorized representative of minimum E0 level).

Two samples will be sent to lab for test (One each to two labs), one (01) sample will be given to supplier, one (01) sample will be retained with Chemistry Dept. and the two (02) will be kept with I/c warehouse. Sample upkeep in warehouse shall be the responsibility of warehouse in charge. User Dept. shall forward the samples directly to the laboratory and send intimation to the Purchase Dept. regarding forwarding of samples to the laboratory for testing.

The samples will be tested at following two ONGC labs:

1. RGL, Vadodara
2. RGL, Panvel

While taking out Samples from the warehouse, entry in this regard shall be made in the register available with Security (who will, after confirming the sealed mode of the sample put security stamp on the samples) at the Warehouse.

Sample receipt and seal breaking of chemical sample at destination lab shall be again videoed on ONGC systems through mobile app. The lab shall check the Bar code / QR code on ONGC systems and confirms its receipts in system.

Atleast 3% package quantity shall be randomly checked for quantity of the supplied chemicals by the same sampling team who are involved in sampling of the particular lot(s), and deficiency certificate be issued, if any.

In all cases where sample has passed the test and there is no dispute, the sample will be destroyed after six months from the date of receipt of corresponding bulk consignment at the Project. In case of any dispute, these samples shall be retained till resolution of said dispute. Destruction / non-destruction of such samples shall not override the supplier's obligations under warranty / shelf life or any other supply order conditions.

Rejection of sample:

The materials rejected by the Inspection Officer during this inspection will be replaced/reoffered by vendor within the delivery schedule of Purchase Order failing which provision of "Failure and Termination Clause/ Liquidated Damages Clause" of Tender document will be applicable. Any rejection by Inspecting Officer shall be considered final and binding on the vendor and such terms should be included in the contract.

In the event of bulk sample getting rejected, the supplier can opt for any of the two following options:

(Option-I)

Supplier may get the same material re-sampled and re-tested in his presence from the same laboratory where it was tested earlier.

(Option-II)

Supplier may lift the failed material, re-process it and re-offer. Supplier will replace the material at its cost within delivery schedule, failing which provision of "Failure and Termination Clause/ Liquidated Damages Clause" of Tender document will be applicable.

In either of the above options, item will be re-sampled and re-tested. If even the re-offered material under Option-I or re-processed and re-offered material under Option-II fails, following action shall be taken:-

i. If Order is for supply of complete order quantity in single lot, ONGC will Terminate/Cancel the order and Invoke Security Deposit against the order. The Process of Vendor banning as per Annexure-37 of SCM Manual shall be followed.

ii. If ordered quantity is to be supplied in more than one lot, supplier may be given one more chance to replace and re-offer the material at its cost within delivery schedule or as agreed by ONGC only in case past lots or any subsequent lots supplied were passed in testing/acceptable to ONGC.

iii. In case of failure of the sample and cancellation of the Purchase Order (PO) for a particular lot, i.e., partial quantity against the PO, only the security deposit corresponding to that lot shall be forfeited. No banning action shall be initiated in such cases.

iv. If order is cancelled for total quantity placed on the supplier, action as per vendor banning policy shall be initiated by the work Centre, in addition to forfeiture of Security deposit.

3. Product Hazard / Safety:

a. The supplier should comply with all laws & regulations regarding product hazard/ safety during manufacture. It shall be the responsibility of the supplier to obtain necessary Pollution control clearance certificate required for the manufacture of the item.

4. Copy of Material Safety Data Sheet (MSDS) of the quoted product has to be submitted with the bulk supply.

5. Special hazard identification symbol / marking is to be incorporated on the label of each packing in case the material is hazardous.

6. In cases where partial requirement of chemical for certain location/lot of PO is withdrawn after expiry of scheduled date/extended date of delivery and supplier has consented to continue with delivery of other locations/lots where ONGC requirement exists (except in cases where the withdrawn quantity pertains to the last lot to be supplied of the entire PO), following actions are to be taken while cancelling the withdrawn quantity:

i) Security Deposit pertaining to the withdrawn / cancelled quantity on pro-rata basis shall only be invoked

ii) No banning action shall be initiated.

iii) Supplier can also deposit/ transfer the invocation amount in ONGC account, within five working days from the date of intimation by ONGC for PBG invocation, instead of PBG invocation.

iv) However, in case entire requirement is withdrawn after expiry of scheduled date/ extended date of delivery, then PO shall be cancelled, PBG invoked and banning action initiated against the supplier.

7. The date of receipt of complete lot of material at destination as per consignee details will be considered as date of delivery for all purposes provided the material conforms to the tender specification.

8. If the material fails in lab test, the actual date of receipt of complete lot of re-offered material at destination as per consignee details will be considered as date of offering/ date of delivery.

9. OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

10. Actual delivery (and Installation & Commissioning (if covered in scope of supply)) is to be done at following address: ONGC STORE CPF, GANDHAR NEAR VILLAGE CHANCHVEL GANDHAR - 392140 DISTRICT - BHARUCH GUJARAT.

11. Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

12. Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regard. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

13. For hazardous chemical/item, all precautionary measure as per regulation from the point of transportation / handling / storage / safety / health / environment to be undertaken / specified before dispatch. During dispatch, proper symbol for the hazard / MSDS / Batch No. / Date of manufacturing / Gross Weight / Net Weight / shelf Life etc are to be written/ printed / pasted on the body of the packing.

14. Supplier shall ensure that the Invoice is raised in the name of Consignee with GSTIN of Consignee only.

15. Shelf Life: The Product to be supplied must have minimum 12 MONTHS Shelf Life. On the date of supply, minimum FROM ACCEPTANCE (QCC) OF MATERIAL AT STORE usable shelf life should be available / balance.

16. Without prejudice to Buyer's right to price adjustment by way of discount or any other right or remedy available to Buyer, Buyer may terminate the Contract or any part thereof by a written notice to the Seller, if:

i) The Seller fails to comply with any material term of the Contract.

ii) The Seller informs Buyer of its inability to deliver the Material(s) or any part thereof within the stipulated Delivery Period or such inability otherwise becomes apparent.

iii) The Seller fails to deliver the Material(s) or any part thereof within the stipulated Delivery Period and/or to replace/rectify any rejected or defective Material(s) promptly.

- iv) The Seller becomes bankrupt or goes into liquidation.
 - v) The Seller makes a general assignment for the benefit of creditors.
 - vi) A receiver is appointed for any substantial property owned by the Seller.
 - vii) The Seller has misrepresented to Buyer, acting on which misrepresentation Buyer has placed the Purchase Order on the Seller.
17. While generating invoice in GeM portal, the seller must upload scanned copy of GST invoice and the screenshot of GST portal confirming payment of GST.
18. Bidders are required to follow the technical specifications as uploaded in the GeM Bid. The document uploaded in Buyer defined ATC document shall supersede all other contradicting or missing conditions in the bid document.
19. The date of receipt of each lot of material at destination i.e. at ONGC STORE CPF, GANDHAR NEAR VILLAGE CHANCHVEL GANDHAR - 392140 DISTRICT – BHARUCH GUJARAT will be considered as date of delivery for all purposes provided the material conforms to the tender specification.

20. Delivery Schedule:

Delivery Schedule: 2850 Kg of DBSA is to be supplied at ONGC Stores, CPF, Gandhar in a Single lot within 45 days from date of the contract placement.

21. Packing & Marking:

The material shall be packed in a New HDPE carboy with airtight lid, strong enough to withstand the rigors of transport and storage.

CAPACITY: Net weight 50 kg per carboy

Each Carboy should have clearly legible marking as given below;

- (a) Name of the Product (in bold letters)/Brand
- (b) Supply Order/ Purchase Order No. and Date.
- (c) Name of the Manufacturer/Supplier.
- (d) Month and Year of Manufacture.
- (e) Lot No & Batch No.
- (f) Net Wt. /Gross wt.
- (g) Hazard Warnings if any.

22. Supplier is required to enter the dispatch details in GeM portal at the time of dispatch of the lot. However, delivery details shall be entered by the supplier only after result of the lab test is out.

23. ONGC reserves the sole discretion to modify the inspection procedures, including sampling, bonding & debonding, and testing, at any stage of the tendering process or afterward of the contract, provided that the technical specifications and testing procedures remain unchanged.

C. Commercial ATC:

i) The successful Bidder, **within 30 (thirty) days** from the date of issue of LOA/NOA from the Purchaser, will be required to send Performance Security in the form of a NEFT/RTGS/Electronic fund transfer to designated account of ONGC (**account details mentioned below**) or in lieu thereof, Performance Bond for an amount equivalent to 3% of the contract value in the form of an Electronic Bank Guarantee (e-BG) or SFMS Bank Guarantee(SFMS-BG)* or Insurance surety Bond as per format at GeM portal.

ii) **(a) NEFT/ RTGS/ Electronic Fund Transfer to ONGC's Bank Account mentioned below:**

Successful Bidder can submit the Performance Security in the form of Payment online through RTGS / internet banking also (besides PBG which is allowed as per GeM GTC).

On-line payment shall be in **Beneficiary name ONGC, Ankleshwar Account No. 10210868032 IFSC**

Code SBIN0002675 Bank Name State Bank of India Branch address ONGC, Ankleshwar (Branch Code: 002675). Successful Bidder to indicate Contract number and name of Seller entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer in place of PBG within 30 days of award of contract.

In case PBG is not submitted within 30 days from the date of NOA, a sum equivalent to 1.5%(one and half percent) of the amount of Performance Security per month for such delay or part thereof shall be recovered from the first Bill/invoice (& any remaining amount from subsequent invoice) submitted by the supplier/contractor.

ii) (b) Electronic Bank Guarantee (e-BG) (as per prescribed GeM proforma):

In case the SD is submitted via Electronic Bank Guarantee (e-BG) through National E Governance Services Limited (NeSL) platform, bidders will be required to provide the details of e-BG such as Number, Date, Name of issuing bank, Expiry, Claim period and amount through GeM Contract and email. The e-BG in pdf format should also be submitted by bidder through GeM Contract and email. **The details of Beneficiary (ONGC) are as under:**

- (i) PAN AAACO1598A
- (ii) Name Oil and Natural Gas Corporation Limited
- (iii) Date of Incorporation 23.06.1993
- (iv) Email ID ebg@ongc.co.in
- (v) Contact No. 7428133002
- (vi) Legal Constitution Entity
- (vii) Registered office address Plot No. 5A-5B, Nelson Mandela Marg, Vasant Kunj, New Delhi-70
- (viii) Registered office address Pin code 110070
- (ix) Communication address ONGC, Shared Service Center,
1st Floor,
IBM office, Sector 62, Noida-201309, Uttar Pradesh
- (x) Communication Address Pin code 201309

Beneficiary Account Name Oil and Natural Gas Corporation Limited

Bank Name State bank of India

Branch CAG Delhi,

Branch Code 17313

Bank Account No 42559953079

IFSC Code SBIN0017313

SWIFT Code SBININBB824

Account Type CC

ii) (c) SFMS Bank Guarantee (SFMS BG) (as per prescribed GeM proforma):

In case of bidder's bank is unable to issue NeSL based e-BG as on date, the bidder can submit SFMS Bank Guarantee (SFMS BG) as per prescribed GeM proforma. Beneficiary Account details for encashment of SFMS BG as well as for messaging BG advice in the form of message format 760 COV via SFMS:

Beneficiary name ONGC, Ankleshwar , Account No. 10210868032, IFSC Code SBIN0002675, Bank Name State Bank of India Branch address ONGC, Ankleshwar (Branch Code: 002675).

Bidder to note that the default / preferable mode of submission of Performance Security (SD) will be NEFT/ RTGS/ Electronic fund transfer or e-BG, however, whenever a bidder submits SFMS BG, the bidder will mandatorily be required to submit letter from issuing bank that it is unable to issue NeSL based e-BG as on date. Such letter should accompany the SFMS Bank Guarantee (SFMS-BG).

1) Bidder shall get SFMS BG issued from SFMS enabled Bank as allowed by ONGC in tender conditions. Bank shall issue the Bank Guarantee through SFMS system and send SFMS message to ONGC's Bank confirming the authenticity of Bank Guarantee. Bidder will be required to submit SFMS BG towards Bid Security along with SFMS delivery report /message copy which has been transmitted to ONGC's bank by BG issuing bank through SFMS system.

2) The SFMS BG will have to be given on non-judicial stamp paper / with franking receipt e stamping as per stamp duty applicable at the place from where the bid has emanated. The non-judicial stamp paper / franking receipt e-stamping should be either in the name of the issuing bank or the bidder.

3) The original SFMS BG in physical form towards Bid Security (along with SFMS delivery report /message copy which has been transmitted by issuing bank through SFMS system to beneficiary's i.e. ONGC's bank) should reach to the designated ONGC office on or before the due date of SD submission.

4) SFMS BG will not be acceptable unless details of the same is transmitted to the ONGC's Bank through SFMS platform. It's the bidder's responsibility to ensure that BG issuing bank sends the BG advice correctly in the form of message format 760COV via SFMS (Structured Financial Messaging System) as provided by RBI while capturing all requisite fields including Beneficiary Account Name, Bank Name, Bank Account Number, IFSC Code etc. 5) In case of any error by the applicant (bidder/contractor) or BG issuing bank while capturing the requisite field details/format or non-receipt of confirmation of BG through SFMS 760COV message format, the bid shall be liable for rejection and bidder/contractor shall be responsible for the same.

6) For any amendment of SFMS BG, message 767COV through SFMS should be used.

NOTE: Format for submission of e-PBG against SD (with Amount & Duration) is available on the GeM Portal. Complete details/documents as brought out above along with physical BG (if SFMS based BG has to be submitted towards EMD / SD) should be submitted within prescribed time frame to buyer's office as per GeM GTC.

iii) In case of contracts placed following e-Bidding / RA, Performance Security valid for 2 months beyond the date of completion of all contractual obligations including warranty obligations, will be obtained from the successful Bidder, for ensuring due performance of the contract. Refer GeM GTC.

Successful bidder shall note that 'Duration of e-PBG required (Months)' indicated in this GeM bid as 02 months reckons from date of expiry of delivery date.

iv) Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail the Purchase preference, the bidder must be the manufacturer of the offered product in case of bid for supply of goods. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with iii) Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail the Purchase preference, the bidder must be the manufacturer of the offered product in case of bid for supply of goods. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service. If L-1 is not an MSE and MSE Seller (s) has/have quoted price within L-1+ 15% of margin of purchase preference /price band defined in relevant policy, such Seller shall be given opportunity to match L-1 price and contract will be awarded for percentage of 25% of total value. the bid in respect of the offered product or service. If L-1 is not an MSE and MSE Seller (s) has/have quoted price within L-1+ 15% of margin of purchase preference /price band and defined in relevant policy, such Seller shall be given opportunity to match L-1 price and contract will be awarded for percentage of 25% of total value.

v) The bidder shall submit following undertakings (from (a) to (d)) on their letterhead along with

th their techno-commercial bid submitted vide GeM portal:

a) Declare that neither the bidders themselves, nor any of its allied concerns, partners or associates or directors or proprietors involved in any capacity, are currently serving any banning orders issued by ONGC debarring them from carrying on business dealings with ONGC."

b) This has reference to our proposed contract regarding to be entered into with Oil and Natural Gas Corporation Ltd. (ONGC). For the purpose of Section 297/299 of the Companies Act, 1956, we certify that to the best of my/our knowledge:

(i) I am not a relative of any Director of ONGC;

(ii) We are not a firm in which a Director of ONGC or his relative is a partner;

(iii) I am not a partner in a firm in which a Director of ONGC or his relative is a partner;

(iv) We are not a private company in which a Director of ONGC is a Member or Director;

(v) We are not a company in which Directors of ONGC hold more than 2 % of the paid-up share capital of our company or vice-versa.

c) Bidder undertakes to provide all the necessary compliances/Invoice/ documents required under GST legislation for enabling ONGC to avail Input tax (GST) credit.

d) Accept all conditions as contained in the tender document unconditionally.

vi) Loading and Unloading at yard will be under the scope of the supplier.

vii) Successful L-1 Bidder may be asked to send a detailed price breakup (indicating GST) during award of contract to the buyer for issuance of Purchase order in the system while awarding the contract.

viii) The supplier has to upload invoices in GeM system after dispatching the material and upload invoices in VIMS Portal after publishing test report for payment process. The supplier is required to enter the dispatch details in GeM portal at the time of dispatch of lot. However, delivery details shall be entered by supplier only after successful inspection/testing at destination. The delay for uploading invoices is liable to Supplier only.

ix) Part Payment & Part delivery is not acceptable.

x) Bank Draft/ Cashier's/Banker's Cheque are not to be considered as acceptable mode for acceptance of Bid Security and Security Deposit.

xi) Micro and Small Enterprise (MSE) bidder, who is holding valid Udyam Registration and is manufacturer of the offered Product, is required to carefully select the option in GeM bid for availing MSE Purchase Preference as per Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 as amended from time to time.

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3. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and
- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा। In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---